

**Attachment 1 Performance Work Statement and QASP
Device Service Plan, Wyndmoor PA**

GENERAL INFORMATION

1. Scope of Work:

1.1. The Prime Contractor shall provide all personnel, transportation, and supervision necessary to perform a Pre-inspection and upon exercise of option, a Service Plan for 1 (one) BD FACSMelody and FACStation with 2 (two) lasers.

1.2. The contractor shall perform all work described in this Performance Work Statement in accordance with all applicable Federal, State, and local laws, regulations, codes, OEM technical specifications and OEM guidelines.

1.3. This is a performance-based requirement, the contractor shall perform to the requirements and standards as established by this PWS. The labor mix of employees to perform this contract remains the discretion of the Contractor for all services.

1.4. All in scope requirements are Firm Fixed Price. This is not a Time and Materials requirement.

1.5. Technical Details of 1 (one) BD FACSMelody and FACStation with 2 (two) lasers:

1.5.1. Machine Serial Number: R6538820020

1.5.2. Mini 488-20 Blue Laser Serial Number: NO-SERIAL-15678

1.5.3. Mini 640-45 Red Laser Serial Number: NO-SERIAL-15679

2. Service performance is on site at a USDA Facility, 600 EAST MERMAID LANE, WYNDMOOR PA 19038.

3. **Period of Performance:** CLIN 0001 for the pre-inspection is for 45 days. CLIN 0002 is an option CLIN for 10 months if the option is exercised.

4. Invoicing and Payment:

4.1. The "Submit Invoice-to" address for USDA orders is the Department of Treasury's Invoice Processing Platform (IPP).

4.2. All invoices shall be submitted via the electronic Invoice Processing Platform. This is a mandatory requirement initiated by the U.S. Department of Treasury. More information is available at <https://www.ipp.gov>. The Department of Treasury is the point of contact for all IPP Collector account inquiries.

4.3. Payment is in arrears pursuant to the clause at FAR 52.212-4. Note FAR 52.212-4 (i)(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

4.4. Payment will not be made for service in advance of delivery.

4.5. The invoice cycle shall be no less than monthly.

4.6. Advance invoice approval is not required, as required approval tiers exist in IPP.

5. Definitions:

5.1. OEM – Original Equipment Manufacturer. For the purposes of this requirement, the OEM is "BD Biosciences"

5.2. CLIN – Contract Line Item, numbered. Established in the solicitation schedule, will start with "0001."

5.3. Option CLIN - A unilateral right in a contract, exercisable for a specified time, allowing the Government to purchase additional services or extend the period of performance. These CLINs represent separate line items with distinct pricing, performance periods, or quantities that the government may exercise without renegotiation.

- 5.4. Government Technical Monitor – USDA Employee Location representative appointed by the Contracting Officer to monitor, evaluate, and communicate to the CO the Contractor’s performance in complying with contract requirements in an efficient and timely manner.
- 5.5. Privity of Contract - Contract service providers shall be accountable solely to the Prime Contractor, who, in turn, is responsible to the Government. For the purposes of this requirement, any reference to “contractor” is referring to the Prime Contractor.
- 5.6. Calendar Days’ - Every single day on the calendar (12 AM to 11:59 PM), including weekends, holidays, and non-working days.
- 5.7. ‘Business Days’ – Standard business days 8AM to 5PM Eastern with holiday exceptions as noted:

Listed below are official Government holidays:

New Year’s Day January 1*

Martin L. King Birthday Third Monday in January

President's Day Third Monday in February

Memorial Day Last Monday in May

Juneteenth As Indicated

Independence Day July 4*

Labor Day First Monday in September

Columbus Day Second Monday in October

Veterans Day November 11*

Thanksgiving Day Fourth Thursday in November

Christmas Day December 25*

Or when the USDA-ARS facility is closed due to local or national emergencies, administrative closings, or similar government-directed facility closings

*In accordance with Federal regulations, if these holidays fall on a Saturday, the holiday will be observed on Friday, if Sunday, holiday will be observed on Monday.

CONTRACTOR PERFORMANCE REQUIREMENTS

6. Technical Requirements/Tasks

6.1. General:

- 6.1.1. Service and pre-inspection Firm Fixed Price does not include consumable items.
- 6.1.2. The Firm Fixed Price for CLIN 0001 and CLIN 0002 includes one (1) Preventative Maintenance Kit.
- 6.1.3. The Firm Fixed Price for either CLIN 0001 and CLIN 0002 services is not itemized for service time minimums, overtime, tiers of service, multiple visits, etc. It is a ‘bundled’ Firm Fixed Price per CLIN.
- 6.1.4. Repairs: Repairs not in scope of the overall requirement (Section 1) and the specific tasks indicated in Sections 6.2 and 6.3 are not included in this requirement. Out of scope repair requirements can be addressed with the Government Technical Monitor.

6.2. Specific Tasks CLIN 0001 – Pre Inspection.

- 6.2.1. The devices identified in Section 1.6 lapsed in service coverage in late 2025, requiring a OEM certified Pre Inspection.
- 6.2.2. The contractor shall perform a pre-inspection of the machine to ensure it is working properly as defined in the OEM User Manual for the referenced devices.
- 6.2.3. The Pre Inspection shall be completed within 45 days of the first day of the CLIN 0001 Period of Performance.
- 6.2.4. If the devices fail the pre-inspection and require out-of-scope repairs, see section 6.1.4 above.
- 6.2.5. Upon completion of the Pre Inspection, the contractor shall:
- 6.2.5.1. The contractor shall report all findings and provide any data on machine operation to the Government Technical Monitor.

6.2.5.2. The contractor shall provide OEM certification that the FACS Melody is in working condition and is suitable for a maintenance contract. The certification must be available in a written PDF format.

6.3. Specific Tasks Option CLIN 0002 – Option for Device Service Plan.

6.3.1. Option exercise pursuant to the clause at FAR 52.217-9.

6.3.2. The contractor shall provide a Device Service Plan for 1 (one) BD FACSMelody and FACStation with 2 (two) lasers, see Section 1.6, to include:

6.3.2.1. One on-site preventative maintenance inspection visit per CLIN period including one PM Kit. Visit is scheduled in advance with USDA technical point of contact.

6.3.2.2. Software Revisions that are released during the contract term.

6.3.2.3. Unlimited 'Business Days' service visits during the term of the contract.

6.3.2.4. 'Business Days' 48-hour guaranteed response to a request for emergency on-site service.

6.3.2.5. 'Business Days' unlimited telephone support availability for instruments, reagents and applications.

7. Contractor's Key Personnel:

7.1. The contractor shall provide a repair service technician(s) that are authorized by the OEM manufacturer of the serial numbered equipment detailed in Section 1 above to perform and document the service requirements.

7.2. Documentation from the OEM of the first and last name authorization of identified service technicians (see section 8.1.2) dated as effective by at least the first day of the contract period of performance, shall be presented only if requested in writing by the Contracting Officer at any point after contract award. This documentation shall be presented to the Contracting Officer in writing within one (1) business day of the written request.

7.3. The Contracting Officer may verify the documentation with the OEM.

7.4. If contractor personnel are added beyond the initial names, after the first day of the contract period of performance, the first and last names with OEM documentation shall be provided within (1) 'business day' of a Contracting Officer's written request at any point after contract award.

8. Security Requirements: All contractor personnel shall always be in the presence of a USDA escort while on location.

QUALITY CONTROL

9. Quality Assurance Surveillance Plan (QASP): The Government shall establish a QASP as a means of evaluating whether the Contractor is meeting the performance standards/quality levels identified in the PWS to ensure that the government pays only for the level of services received.

Tasks	Standards	Acceptable Quality Level (AQL)
<i>Technical Requirements and Tasks identified in Section 6, 7, and 8</i>	<i>Standards as established in Technical requirements and tasks identified in Section 6, 7, and 8.</i>	<i>100%</i>